

		Moving attorney to provide notice.
5	Kostadinov vs. La Cabana Food Distributing, Inc. 30-2024-01404446	1. Demurrer to Complaint filed by U.S. Specialty Insurance Company on 10/01/2024 2. Case Management Conference Defendant U.S. SPECIALTY INSURANCE COMPANY ("U.S. Specialty") demurs to Plaintiff KRASSIMIRE KOSTADINOV's ("Kostadinov") entire Complaint pursuant to Code of Civil Procedure §§ 430.10(e), 430.10(f), 430.10(g) and California Rule of Court, rule 3.1320, without leave to amend. Demurrer is SUSTAINED with twenty (20) days leave to amend for failure to state sufficient facts to constitute a cause of action and uncertainty. As to moving Defendant U.S. SPECIALTY INSURANCE COMPANY, the Complaint only alleges that this is Plaintiff's insurance company, and he has received no payment. Inconsistent with that statement, now, in the Opposition, Plaintiff claims "there is a good faith belief that USSIC issued a policy applicable to one or more defendants." <i>See</i> Opp. at 3:4-5. These inconsistent statements render the Complaint confusing and uncertain. Notably, a statutorily compliant meet and confer as required by the Code of Civil Procedure section 430.41 did not occur in connection with the instant filing. Moving party contends that even after many attempts to meet and confer with opposing counsel, those attempts were never responded to. Accordingly, the Court now sets and OSC re Sanctions against Plaintiff and his attorney for failure to communicate regarding meet and confer attempts of Defense counsel. Any declarations the Court is to consider in connection with the OSC must be filed no later than two (2) court days prior to the hearing. OSC re Sanctions as to Plaintiff and Plaintiff's Counsel is set for May 26, 2025 at 1:30 p.m. in Dept. C11. Case Management Conference is CONTINUED to same date and time.

		Defendant U.S. Specialty Insurance Company to give notice.
6	Leung vs. Felix 30-2023-01357423	Motion to Set Aside / Vacate Dismissal filed by Nozomi T. Leung on 10/29/2024 Plaintiff, Nozomi Leung, moves for an order setting aside the dismissal. The Motion is GRANTED. Plaintiff contends that the Court should set aside the dismissal pursuant to Code of Civil Procedure section 473(b) and set a Case Management Conference because there was excusable neglect as Plaintiff's counsel attempted to attend the hearing on the Court's portal on Zoom but had a difficult time reaching the Court due to problems with their computer. Declaration of Barry Zelner, ¶ 3. Code of Civil Procedure section 473(b) states: The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. “[A] party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself [or herself] or of his [or her] counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he [or she] seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he [or she] is entitled to it, and the assumption of this burden necessarily requires the production of evidence.” <i>Kendall v. Barker</i>, 197 Cal. App. 3d 619, 623-624 (1988). In a motion under section 473, the initial burden is on the moving party to prove